

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JILLIAN SAUNDERS,

Petitioner

VS.

MEGAN SAUNDERS,

Respondent

) Case Number: FDI-25-802306

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEYS FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jillian Saunders and Respondent Megan Saunders married on 1/24/2015. Petitioner states the parties' date of separation is TBD. Respondent states the parties date of separation is 8/17/2025, for a marriage of 10 years and 6 months. The parties have two minor children, Sloane and Harper, both born on 9/11/2016 (age 9). Petitioner is represented by attorney Jennie Vaughn of the Schoenberg Family Law Group. Respondent is represented by attorney Nathaniel Bigger.
- 2) On 12/5/2025, Petitioner filed a Request for Domestic Violence Restraining Order against Respondent in related Case No. FDV-25-818797. Following a two-afternoon long-cause hearing, the Court denied Petitioner's request on 3/18/2026 and consolidated the FDV Case into the FDI Case.
- 3) Now on for hearing is Petitioner's Request for Order filed 1/27/2026 seeking \$45,000 in need-based attorney's fees and costs.
- 4) On 1/27/2026, Petitioner's attorney filed a declaration in support of Petitioner's request for attorney's fees and costs.

- 1 5) On 1/27/2026, Petitioner filed an Income and Expense Declaration. Petitioner lists no income.
2 Petitioner has an Etsy shop where she reports average monthly losses. Petitioner states that her
3 monthly expenses total \$8,622 per month. Petitioner states that she has \$3,000 in cash savings,
4 \$18,556 in easily saleable investments, and \$4,000 per month in personal property. Petitioner
5 reports owing \$40,000 in credit card debt. Petitioner states she has incurred \$14,839 in fees and
6 costs through 1/14/2026 in the FDI matter and has incurred \$12,066 in fees and costs through
7 1/14/2026 in the FDV matter.
- 8 6) On 4/10/2026, Respondent filed a Responsive Declaration. Respondent asks the Court to deny
9 Petitioner's request for attorney's fees. Respondent asks the Court to order Petitioner to reimburse
10 her \$36,000 that Petitioner charged to credit card accounts in Respondent's name (without
11 Respondent's consent) for attorney's fees Petitioner incurred to pursue her unsuccessful
12 restraining order request. Respondent states she has already provided Petitioner with \$37,500 to
13 date (using funds received from an inheritance), which included \$15,000 paid to Petitioner's
14 attorney. Respondent states she cannot afford to make additional contributions to Petitioner's
15 attorney fees. Respondent states her gross monthly income is \$10,800, and she pays Petitioner
16 \$4,320 per month for non-Court-ordered spousal and child support.
- 17 7) On 4/10/2026, Respondent filed a Memorandum of Points and Authorities.
- 18 8) On 4/10/2026, Respondent filed an Income and Expense Declaration. Respondent states she earns
19 \$10,800 in gross per month and \$1,636 per month on average for bonuses. Respondent states her
20 monthly expense total \$10,844, which includes \$7,000 per month for rent for two apartments.
21 Respondent states she has \$11,800 in cash savings, \$32,717 in easily saleable investments, and
22 \$6,800 per month in personal property. Respondent reports a \$23,294 loan for a Tesla and
23 \$49,204 in credit card debt. Respondent states she has paid her attorney \$15,000 to date and still
24 owes \$5,029. Respondent states the children spend 0.1% of their time with Petitioner, but
25 Respondent seeks a 50% timeshare. Respondent states Petitioner has chosen to homeschool the
26 parties' children (who have been diagnosed with autism), but Respondent believes the children
27 would benefit from a more structured educational environment.
- 28 9) On 4/16/2026, Petitioner filed a Reply Declaration, and her attorney filed an additional
29 declaration and Memorandum of Points and Authorities. Petitioner states that Respondent's

1 income is much higher than she claims given her bonuses and equity compensation. Petitioner
2 states that Respondent earns \$16,330 per month in gross income which Petitioner states consist
3 of base pay, HSA contributions, cell phone and internet reimbursements, bonuses, dividends, and
4 RSUs. Petitioner also states that Respondent makes material misstatements regarding how much
5 Respondent gives her per month and what her monthly expenses are. Petitioner's attorney states,
6 "To date, Petitioner has paid SFLG approximately \$65,700 (DV Case: \$34,700; Legal
7 Separation/Disso Case: \$31,000)." Petitioner reiterates her request for \$45,000 in need-based
8 attorney's fees.

9 10) The Court notes that a child support case has been opened, but no child support orders (or
10 temporary spousal support orders) have yet been made.

11 **B. Findings and Order**

12 1) The Court finds that there is a disparity in access to funds to pay legal fees and that Respondent
13 has the ability to make an additional contribution to Petitioner's fees (in addition to the \$15,000
14 Respondent states she has already contributed). No later than 5/1/2026, Respondent shall pay to
15 Petitioner an additional \$15,000, which the Court finds is a just, reasonable, and necessary
16 amount for fees incurred to date and through the conclusion of this FDI case. The Court finds that
17 Respondent does not currently have the ability to contribute more than this amount to Petitioner's
18 fees. In making this fee award, the Court is not awarding to Petitioner any fees or costs Petitioner
19 incurred to pursue her unsuccessful request for DVRO.

20 2) Respondent's request that the Court order Petitioner to reimburse her \$36,000 that Petitioner
21 charged to credit card accounts in Respondent's name for attorney's fees Petitioner incurred to
22 pursue her unsuccessful restraining order request is denied without prejudice as this request is
23 beyond the scope of Petitioner's Request for Order. The Court's jurisdiction over this issue is
24 reserved.

25 3) Petitioner's attorney shall prepare the Findings and Order After Hearing.

26 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
27 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
28 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
29 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
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